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Guidelines for Choosing NIW Recommenders

Introduction

When preparing a National Interest Waiver (NIW) petition, selecting the right recommenders to sign your Support Letters is vital. While the United States Citizenship and Immigration Services (USCIS) does not have strict requirements for who may serve as a recommender, our guidance is based on recent adjudication trends and our experience with successful filings. Nevertheless, we are flexible and will work with your preferences as needed.

How Many Letters to Submit?

- We recommend submitting no more than 4 Support Letters with your petition.
- In some cases, fewer letters are even better.
- Submitting too many letters can weaken your case by distracting from your objective evidence, such as citations and publication records.

Types of Support Letters

Your support letters may include:

1. National Importance Testimonial Letter: Shows government or agency interest in your research and your ability to advance your proposed endeavor.
    - *Information for this letter comes from the Proposed Employment/Proposed Endeavor tab (Section A).*
2. Planned Research Testimonial Letter: Confirms your ongoing or future research projects.
    - *Information for this letter comes from the Proposed Employment/Proposed Endeavor tab (Section A).*

3. General Recommendation Letter: Offers expert opinions on the value and impact of your past research and accomplishments.
    - *Information for this letter comes from the details you provide in your CV, Publication Record tab, and RBIF tab.*
    - *Use the "Recommenders" tab to list potential recommenders. Provide detailed info for each candidate. This helps us quickly select the best mix and find replacements if needed.*

***Note:** Testimonial Letters (national importance and planned research) now carry significantly more weight for NIW petitions than general recommendation letters.

Where To Provide Us With Recommender Information

To provide us with information about potential recommenders or signers of your Support Letter, please fill out the **Proposed Employment/Proposed Endeavor** (for Testimonial Letters) and the **Recommenders** (for Recommendation Letters) tabs. If you have any questions about your recommenders or about how to fill out either tab, please reach out to us! Once you have completed the tabs, please send us a direct message. We will then begin drafting your Support Letters.

Testimonial Letter: Signer Selection

Who Makes a Strong Testimonial Letter Signer?

- For *National Importance Testimonial Letters*, signers should ideally be from "governmental/quasi-governmental" agencies.
    - A "governmental agency" is an organization directly operated by the U.S. government at a federal, state, or local level.

- A "quasi-governmental" agency is an organization that has characteristics of a government agency, but may operate independently to a certain extent instead of being fully operated by the government. State universities, the U.S. Postal Service, and State transit authorities are all examples of "quasi-governmental agencies."

- For *Planned Research Testimonial Letters*, signers may be collaborators, co-workers, and managers who have direct knowledge of your ongoing or future research projects.
- In general, it is better if signers are established professionals in your field, not current students or postdocs.
- Signers do not need advanced degrees. Well-established experts without advanced degrees are acceptable.
- Please do not choose someone just for their impressive title. Familiarity with your work matters most.

General Recommendation Letter: Recommender Selection

Types of Recommenders

Recommendation Letters may be signed by two different types of recommenders: *dependent* and *independent*. For NIW petitions, dependent recommenders are preferred.

- **Dependent Recommenders:**
  Anyone who has worked with you (advisor, supervisor, collaborator, or colleague from the same institution or at the same time) is considered "dependent." *Recent USCIS trends indicate that dependent letters are now especially valued for NIW cases.*
- **Independent Recommenders:**
  Anyone who has never worked with you or shared an institution/organization during the same period. *These letters show your influence and recognition beyond your immediate circle.*

Not sure if someone is dependent or independent?
If you are unsure if a potential recommender is dependent or independent, please share their background with us via Messages, and we will help you classify them.

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- Signers do not need advanced degrees. Well-established experts without advanced degrees are acceptable.
- Please do not choose someone just for their impressive title. Familiarity with your work matters most.
- For NIW, try to have at least half of your recommenders be U.S.-based, ideally from different states.
- Geographic diversity is helpful, but not required for a strong case.
- Federal employees *can* sign support letters, but may face restrictions on using official titles or letterhead. Each employee must check their agency's policies and decide if they can participate.

Important Notes

- Recommendation letters cannot be used as direct evidence (for example, for citation count). They provide expert context about your work.
- If possible, please list numerous potential recommender candidates. Extra candidates help us move quickly if a recommender declines.

Example Recommenders

- Your PhD or Master's advisor: *Dependent*, since they worked directly with you.
- Coauthor of your papers or data contributor: *Dependent*, since they are a collaborator.
- A researcher in the same field whom you met at a conference: *Independent*, since there is no direct connection between you, other than one brief meeting.

Frequently Asked Questions

1. **Why shouldn't I draft this letter myself?**

   These letters serve a specific and important function: to strengthen your Petition Letter by demonstrating that you meet all the necessary criteria for your case. That being the case, every line in your Support Letters must be drafted with care to ensure it reinforces the arguments in the Petition Letter and covers all essential points. Since it is easy to accidentally include harmful or irrelevant details, we have found it most effective for our team to prepare the first drafts of these letters. You and your recommenders can then review and revise these drafts for accuracy, doing so while preserving the key components that are critical to your petition.

2. **How can the signer contact you if they have any questions about this process?**

   Please ask your signers to email us at attorneys@chenassociates.com if they have any questions. Please note that you will need to provide authorization before we can address their questions.

3. **What are the legal repercussions of submitting a Support Letter for my case? Will the signer be contacted by the USCIS?**

   In our experience, submitting a letter on your behalf should not affect your or your signers' lives in any way. While possible, it is very unlikely the USCIS will contact you or your signers.

4. **How are you able to draft these letters when you are not experts in the field?**

   We specialize in discussing highly technical work in layperson's terms, which we have found to be the best approach when describing the importance of a client's work to USCIS adjudicators, who have limited background understanding of these fields. This said, if we do not get everything right in the first draft, we welcome your feedback.

Sample Recommendation Letters

For your reference, we have included sample recommendation letters in **Appendix B – Recommender Guidelines**. You may review these samples to better understand the general structure and drafting approach. You are also welcome to share them with your potential recommenders for guidance.